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DALTON C. GAUDIN

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES
NORTH VALLEY DISTRICT

STUDENT LOAN SOLUTIONS	)	Case No. 24CHLC00778
LLC,	)	
	)	MEMORANDUM OF POINTS AND
Plaintiff,	)	AUTHORITIES IN SUPPORT OF
	)	DEMURRER OF DALTON C GAUDIN
vs.	)	TO THE COMPLAINT OF STUDENT
	)	LOAN SOLUTIONS LLC
DALTON C GAUDIN aka DALTON	)	
CALEB GAUDIN and DOES 1	)	<i>(Filed concurrently with Notice of Demurrer</i>
through 30, Inclusive,	)	<i>and Demurrer; Request for Judicial Notice;</i>
	)	<i>Declaration of Daniel "Sparky" Abraham;</i>
Defendants	)	<i>and [Proposed] Order)</i>
	)	
	)	Date: May 16, 2024
	)	Time: 8:30 am
	)	Dept: F41
	)	
	)	Reservation ID: 945662718873

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In an attempt to justify its long time-barred action, Plaintiff advances a novel theory as applied to simple, unsecured loan contracts. Plaintiff contends that the contract was not for repayment of a single loan amount, but was instead a contract for each separate monthly payment due. Hence, Plaintiff claims that eleven years after the contract was allegedly breached, it may still bring an action for future monthly payments. Plaintiff attaches dozens of pages of colorful but obscure internal documents to its Complaint, none of which are part of the actual agreement at issue.

It is true that some contracts in California involve separate, divisible installments, and that the limitations period for those contracts therefore runs as to each installment. However, those contracts involve ongoing relationships between the parties, such as continuing service contracts or cases where a lender has a security interest in collateral held by the borrower. In those cases, there are continuing performance obligations on both parties to justify separate limitations periods for each instance of performance. That is not the case here.

In this case, Plaintiff alleges that Mr. Gaudin took out a simple, unsecured loan for a set amount to be repaid with interest. Plaintiff purchased that loan nearly five years after default, then waited an additional six years to file this suit. Even if the loan was an installment loan, Plaintiff's unreasonable delay would constitute a waiver of its right to accelerate future payments.

1 Notwithstanding Plaintiff's inapposite theory and unreasonable delay, Plaintiff also
2 alleged in a previous lawsuit against Mr. Gaudin for the same account that the subject loan
3 was accelerated in August, 2018. Therefore, even if Plaintiff's theory were correct, and
4 even if Plaintiff had not waived its right to accelerate, Plaintiff's cause of action would be
5 time-barred according to Plaintiff's own admissions in its own filings.

6 For these reasons, and as explained below, Plaintiff's sole cause of action in this
7 matter is long-barred by the limitations period, and Mr. Gaudin respectfully requests that
8 this Court grant his Demurrer without leave to amend and enter a dismissal with prejudice.

9 **STATEMENT OF FACTS**

10 **I. Current Action**

11 The Complaint in this matter was filed on January 9, 2024. In the Complaint,
12 Plaintiff alleges that Mr. Gaudin breached an agreement by failing to make payments when
13 due. (Complaint, ¶ 12.) Documents attached to the Complaint demonstrate that payments
14 were due on the tenth day of each month beginning in December, 2008. (Note Disclosure
15 Statement, Affidavit in Support of Accelerated Balance, Exhibit B ("When payments are
16 due: On the 10th day of each month beginning 12/2008").) The Complaint alleges that Mr.
17 Gaudin's last payment was made on November 5, 2012. (Complaint, ¶ 11.) Hence, the
18 Complaint alleges that Mr. Gaudin's first missed payment was due December 10, 2012,
19 and that Mr. Gaudin has not made a payment since that date.

20 Attached to the Complaint is a purported copy of the contract in question
21 (Promissory Note, Affidavit in Support of Accelerated Balance, Exhibit A), and a copy of
22 the Note Disclosure Statement that purports to set out the final terms of the contract (Note
23 Disclosure Statement, Affidavit in Support of Accelerated Balance, Exhibit B.) The
24 Promissory Note and Note Disclosure indicate that the purported loan was made for
25 \$21,857.92 with a variable rate of interest to be adjusted monthly according to the LIBOR
26 index. (*Id.*) There is no prepayment penalty—hence the contract can be fully satisfied at
27 any time by paying the principal balance and accrued interest. (*Id.*)

1 The Complaint alleges that the purported loan was purchased by Plaintiff in
2 October of 2017. (Bill of Sale, Complaint package¹ p. 47.) The Complaint attaches what it
3 purports to be documentation of that sale, which appears to show the following
4 information for the loan: “‘BalCurr’ \$25,677.27” and “‘ChgoffAmOrig’ \$24,988.49.”
5 (Annex I, Complaint package p. 44.) Hence the documentation of sale indicates that
6 Plaintiff purchased an entire amount due that had been charged off and continued to accrue
7 interest, *not* a sum of missed payments to date and future payments due.

8 **II. Previous Action**

9 Plaintiff previously sued Mr. Gaudin on the same account. (*See* Complaint, Case
10 Number 22CHLC17031, Request for Judicial Notice (“RJN”), Exhibit A.) In its previous
11 action, Plaintiff alleged that it accelerated the loan that is the subject of this action “on or
12 about August 10, 2018.” (RJN, Ex. A, p. 3, ¶ 12.)²

13 **LAW AND ARGUMENT**

14 **I. Standard For Demurrer**

15 A demurrer is appropriate where the complaint “does not state facts sufficient to
16 constitute a cause of action” and where “[t]he court has no jurisdiction of the subject of the
17 cause of action alleged in the pleading.” (Code Civ. Proc. § 430.10(e); § 430.10(a).) A
18 demurrer is also appropriate where the complaint “has included allegations that clearly
19 disclose some defense or bar to recovery.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004)
20 118 Cal.App.4th 1413, 1421; quoting Weil & Brown, Cal. Practice Guide: Civil Procedure
21 Before Trial (The Rutter Group 2003) ¶ 7:64, p. 7-29.) “[E]videntiary facts found in

22 ¹ Where the documents attached to the Complaint do not clearly indicate which Exhibit
23 they fall under, the page number is indicated as it occurs in the overall Complaint package.

24 ² Although beyond the scope of this Demurrer, it is worth noting that Mr. Gaudin,
25 representing himself, moved to dismiss the prior action and offered evidence showing that
26 Plaintiff had accelerated this account as early as April, 2018. Plaintiff opposed the motion,
27 but voluntarily dismissed the prior case before the continued hearing date. *See generally*
Register of Actions, Case No. 22CHLC17031; Addendum and Declaration in Support of
Motion to Dismiss & Memorandum of Exhibits, filed Dec. 12, 2022.

1 recitals of exhibits attached to a complaint . . . can be considered on demurrer.” (*Frantz v.*
2 *Blackwell* (1987) 189 Cal.App.3d 91, 94.) In ruling on a demurrer, the Court may also
3 consider facts subject to judicial notice. (Code of Civ. Proc. § 430.70; *Blank v. Kirwan*
4 (1985) 39 Cal. 3d 311, 318).

5 When a general demurrer successfully challenges a complaint, “[t]he burden is on
6 the plaintiff . . . to demonstrate the manner in which the complaint might be amended.”
7 (*Association of Community Organizations for Reform Now v. Department of Industrial*
8 *Relations* (1995) 41 Cal.App.4th 298, 302; quoting *Hendy v. Losse* (1991) 54 Cal.3d 723,
9 742.) Leave to amend should be denied where there is no “reasonable possibility that the
10 defect can be cured by amendment” (*Blank*, 39 Cal. 3d at 318.)

11 When the allegations of a complaint reveal that the action is barred by the statute of
12 limitations, “the use of the demurrer to dispose of that action . . . is an efficient,
13 appropriate, and well-accepted procedure.” (*Barton v. New United Motor Manufacturing,*
14 *Inc.* (1996) 43 Cal.App.4th 1200, 1210.)

15 **II. The Demurrer Should Be Sustained Because The Complaint Indicates**
16 **On Its Face That It Was Filed More Than Four Years After The Cause**
17 **Of Action Accrued.**

18 **a. Plaintiff’s Cause of Action Accrued on the Alleged Breach in 2012.**

19 Plaintiff alleges a single cause of action for breach of contract based upon a written
20 agreement. This claim is subject to the four-year limitations period set forth in Code of
21 Civil Procedure § 337. Plaintiff alleges that Mr. Gaudin breached the agreement by failing
22 to make monthly payments beginning after his November 5, 2012 payment. (Complaint ¶¶
23 11-12.)

24 “[A] cause of action accrues upon the occurrence of the last element essential to the
25 cause of action.” (*Howard Jarvis Taxpayers Ass’n v. City of La Habra* (2001) 25 Cal.4th
26 809, 815.) “A cause of action for breach of contract accrues at the time of breach, which
27

1 then starts the limitations period running.” (*Cochran v. Cochran* (1997) 56 Cal.App.4th
2 1115, 1120, as modified (Aug. 12, 1997).)

3 Here, the cause of action for alleged breach of contract accrued on Mr. Gaudin’s
4 alleged breach in 2012, and the four-year limitations period expired in 2016. Because
5 Plaintiff’s Complaint was filed more than *eleven* years after the alleged breach, its sole
6 cause of action is time-barred.

7 **b. The Payment Obligation Under the Contract is an “Entire”**
8 **Obligation, and the Payments Are Not Severable.**

9 Plaintiff attempts to avoid the conclusion that its claim is time-barred by including
10 allegations to the effect that the loan is an “installment agreement.” (Complaint, ¶¶ 10, 12-
11 14, 22-24.) To this end, Plaintiff alleges that “[t]he Disclosure Statement expressly states . .
12 . the number of payment installments, each individual installment amount, [and] the date
13 each installment payment was due” (Complaint, ¶ 10.) This allegation is contradicted
14 by the documents attached to the Complaint, which note that the amount of each payment
15 could change depending on the variable interest rate applied (Note Disclosure Statement,
16 Affidavit in Support of Accelerated Balance, Exhibit B), that the loan could be prepaid at
17 any time without penalty (*Id.*), and that the loan is subject to deferment. (Promissory Note,
18 Affidavit in Support of Accelerated Balance, Exhibit A, ¶ E.)

19 Regardless, the relevant question is not whether the contract is an “installment
20 contract.” Rather, the relevant question is whether the obligation in the contract is
21 *severable* into the component parts, or whether it is an entire agreement. (*Armstrong*
22 *Petroleum Corp. v. Tri-Valley Oil & Gas Co.* (2004) 116 Cal.App.4th 1375, 1389 (“If the
23 parties to its making intend an entire contract, not a severable one, the courts will not find
24 it divisible despite periodic performance.”).)

25 “[The] general rule [is] that a contract which calls for the payment of a specified
26 sum for performance by the other party is not ‘severable’ merely because payments are
27 divided into installments.” (*Jozovich v. Central Cal. Berry Growers Ass’n* (1960) 183

1 Cal.App.2d 216, 224.) Rather, “[a] contract is divisible where by its terms, 1, performance
2 of *each party* is divided into two or more parts, and, 2, the number of parts due from each
3 party is the same, and, 3, the performance of each part by one party is the agreed exchange
4 for a corresponding part by the other party.” (*Id.* at 223, emphasis added.)

5 *i. The words of the agreement show that the payments are not*
6 *severable.*

7 “The words used in an agreement are a primary source from which to glean the
8 parties' intent.” (*Armstrong Petroleum Corp., supra*, 116 Cal.App.4th at 1389.) Here, the
9 Complaint and attached documents, including the contract itself, make clear that the
10 contract at issue is simply “payment of a specified sum” divided into monthly payments,
11 not divided performance by each party such that each instance is its own severable
12 obligation. The very first paragraph of the contract, titled “PROMISE TO PAY,” states
13 that the operative promise is to pay “the Loan Amount Requested” including interest and
14 fees. (Promissory Note, Affidavit in Support of Accelerated Balance, Exhibit A, ¶ A.) The
15 option to make monthly payments is not specified until later in the agreement, and those
16 payments are calculated only with reference to the entire amount owed. (*Id.* at ¶ E.3.)

17 Plaintiff's predecessor performed one act: providing a sum of money. In return, Mr.
18 Gaudin allegedly agreed to pay back that sum of money plus any interest that accrued
19 while it was outstanding. Per the contract, he had the option of doing so in no more than
20 240 monthly payments, or of prepaying the amount due at any time. (Note Disclosure
21 Statement, Affidavit in Support of Accelerated Balance, Exhibit B.) The words of the
22 agreement therefore indicate that the parties contracted for an entire sum, not for
23 individually severable payments.

24 *ii. The conduct of the parties as alleged in the Complaint shows that*
25 *the payments are not severable.*

26 The entirety of the contract is further evidenced by the conduct of Plaintiff's
27 predecessor as alleged in the Complaint. Plaintiff alleges that Bank of America charged off

1 the entire balance of the loan in 2013. (Complaint ¶¶ 16-17; Complaint package at pp. 42,
2 44.) “Charge off” is defined in Black’s Law Dictionary as “[t]o treat (an account
3 receivable) as a loss or expense because payment is unlikely; to treat as a bad debt.”
4 (CHARGE OFF, Black’s Law Dictionary (11th ed. 2019).) As alleged, Bank of America
5 did not charge off only the sum of past-due payments, but instead charged off *the entire*
6 *balance due* under the agreement, including the total principal and interest. (See Complaint
7 package p. 42.) Bank of America then sold the loan to Plaintiff, and again specified only
8 the total due, not the sum of past-due payments. (See Annex I, Complaint package p. 44.)
9 Hence Bank of America, the lender and drafter of the agreement, treated the agreement as
10 one for an entire balance due, not for separate monthly payments each constituting its own
11 obligation.

12 **c. Caselaw Involving Secured Lending is Inapposite.**

13 To be sure, there are California cases finding monthly payments toward loan
14 agreements to be severable where there is collateral at issue, including in the mortgage
15 context.³ These cases are, however, inapposite, because a security interest in borrower-held
16 collateral creates ongoing bilateral obligations between the parties. In this case, there is no
17 such ongoing obligation.

18 In the mortgage context, the lender holds an interest via a Deed of Trust in property
19 owned by the borrower. Enforcement of the deed of trust through nonjudicial foreclosure is
20 not limited by the limitations period in Code of Civil Procedure § 337, but has its own
21 limitations period stated in Civil Code § 882.020. Hence, the lender’s ability to foreclose is
22 independent of the expiration of the statute of limitations to enforce the underlying note.
23 (See *Nicolopoulos v. Superior Court* (2003) 106 Cal.App.4th 304, 310.)

24
25 ³ See, e.g. *Piedmont Capital Management, L.L.C. v. McElfish* (2023) 94 Cal.App.5th 961
26 (loan secured by property); *Bird v. Real Time Resolutions, Inc.* (N.D. Cal. 2016) 183
27 F.Supp.3d 1058 (loan secured by property); *White v. Moriarty* (1993) 15 Cal.App.4th 1290
(loan secured by video camera); *Bank of America Nat. Trust and Sav. Ass’n v. McLaughlin*
(1957) 152 Cal.App.2d Supp. 911 (loan secured by property).

1 In that context, the lender and borrower have continuing mutual obligations: the
2 borrower is obligated to make payments (and to comply with other terms including, *e.g.*
3 upkeep of the property), and the lender is obligated to maintain but not enforce its ongoing
4 security interest in the borrower's property. In terms borrowed from *Jozovich*, the
5 performance by one party (payments from the borrower) is the agreed exchange for a
6 corresponding performance by the other party (holding but not enforcing security interest
7 from the lender). (*supra*, 183 Cal.App.2d at 223.)

8 Here, there is no such continuing relationship. The lender made one single act:
9 providing money. The borrower, as alleged in the Complaint and supporting documents,
10 was obligated to repay that money with interest. The borrower had the option of doing so
11 over monthly payments, but there is no corresponding performance by the lender of any act
12 or duty to indicate that those monthly payments are obligations in themselves. Rather, they
13 are periodic performances toward an entire contract.

14 **III. Plaintiff Accelerated the Subject Account More Than Four Years**
15 **Before Filing This Action.**

16 Plaintiff's flawed theory in this matter is as follows: (1) the statute of limitations
17 runs as to each individual payment due on the loan; (2) Plaintiff may at its whim accelerate
18 the entire future balance due; and (3) upon acceleration, the entire balance is due, and
19 Plaintiff may sue for the entire balance less payments due more than four years prior. For
20 the reasons set forth above, this theory, which would allow debt buyers to sue on breach of
21 contract claims literally decades after default, does not hold water. However, even on its
22 own theory, Plaintiff's cause of action in this matter is time-barred because Plaintiff has
23 alleged that the subject loan *was in fact accelerated* more than four years before this action
24 was filed.

25 Plaintiff's Complaint in this matter does not allege when the subject account was
26 accelerated, only when Plaintiff gave notice of acceleration. (*See* Complaint, ¶ 24C.)

1 However, in its previous lawsuit against Mr. Gaudin on the same account, Plaintiff alleged
2 as follows:

3
4 “Plaintiff alleges that within the last four years, on or about August
5 10, 2018, hereinafter referred to as the “Acceleration Date”, the
6 Defendants became indebted on the Account at the accelerated sum of
7 \$11,292.68. Student Loan Solutions, LLC, as Holder, accelerated the
8 Note for \$11,292.68.” SLS sent Defendants written notice of
9 acceleration via an Acceleration Notice dated April 29, 2022.” (RJN,
10 Ex. A, pp. 2-3, ¶ 12.)

11 Plaintiff’s previously-filed Complaint is judicially noticeable pursuant to California
12 Evidence Code § 451(d) because it is a record of a court of this state. Plaintiff’s statements
13 within its previous Complaint are admissible and not hearsay pursuant to California
14 Evidence Code § 1220 because they are statements made by a party opponent.

15 Between its two Complaints filed against Mr. Gaudin, Plaintiff has only alleged
16 one date on which the account was accelerated: August 10, 2018. On Plaintiff’s own
17 theory, at that point Mr. Gaudin was obligated to pay the entire balance, and Plaintiff’s
18 cause of action accrued for the entire balance due. This action was filed on January 9,
19 2024, more than four years after Plaintiff’s cause of action accrued. This action is therefore
20 barred by the four year limitations period set forth in Code of Civil Procedure § 337.

21 **IV. Plaintiff’s Complaint Demonstrates That It Has Waived Any Right to**
22 **Accelerate Payments.**

23 Even if the payments alleged in the Complaint are severable, and even if Plaintiff
24 had not accelerated the balance more than four years prior to filing this action, Plaintiff’s
25 Complaint demonstrates that it has waived its right to accelerate through unreasonable
26 delay.

27 “[A]n option to declare the entire principal due on default of a payment of principal
28 or interest must be exercised within a reasonable time.” (*Holland v. Paddock* (1956) 142
Cal.App.2d 534, 538.) In *Holland*, the plaintiff waited eleven months after the initial
default to exercise its acceleration clause and call the entire principal due. (*Id.*) The

1 *Holland* court held that this eleven month delay constituted a “failure to act reasonably and
2 promptly,” and thus that the plaintiff had waived its right to declare the whole amount due.
3 (*Id.*)

4 Here, the Complaint alleges that the default occurred in December 2012.
5 (Complaint, ¶¶ 11-12.) The Complaint does not allege when the balance was accelerated,
6 but alleges that Plaintiff provided notice of acceleration in April, 2022. (Complaint, ¶ 24.)
7 By omitting the previously alleged acceleration date of August 10, 2018, *see* Section III
8 *supra*, Plaintiff appears to imply that the loan was accelerated in April, 2022. Where the
9 *Holland* court held that eleven months was an unreasonable delay, Plaintiff alleges that it
10 waited *almost ten years* to give notice of acceleration, and nearly two more years to file
11 this action.

12 Such a significant delay can be expected to prejudice any Defendant in exactly the
13 manner that a limitations period is meant to protect against. After eleven years, the
14 possibility of recovering memories of conversations, records of payment, previous
15 correspondence, and any other evidence relevant to a claim or defense is inevitably
16 diminished. The Complaint alleges facts that demonstrate a waiver of the right to
17 accelerate, and this Demurrer should be sustained on that basis.

18 **CONCLUSION**

19 For the reasons stated above, Defendant Dalton C. Gaudin respectfully requests that
20 this Demurrer to Plaintiff Student Loan Solutions LLC’s Complaint be sustained without
21 leave to amend and that this action be dismissed.

22
23 Dated: April 15, 2024

24 

25 Daniel “Sparky” Abraham
26 Jubilee Legal
27 Attorney for Dalton C. Gaudin